HAMES UMASSAH - MISHNEH TORAH

Rambam's Seder Night

Hames UMassah - Mishneh Torah

With Rabbi Daniel Kada · Special Shiur

How the Rambam would have conducted his Seder — Mishneh Torah

Commentary primarily based on Rav Yosef Kapach z"l

Chapter 7 — The Mitzvot of the Night

Halacha 1 — The Biblical Obligation to Tell the Story

Rambam: It is a mitzvat aseh (positive Torah commandment) to speak about all the miracles and wonders Hashem did for our ancestors in Egypt, on the night of the 15th of Nisan.

Source: "Zachor et ha-yom ha-zeh asher yatzata mi-Mitzrayim" (Shemot 13:3) — Remember the day you left Egypt. The Rambam draws a parallel to "Zachor et yom ha-Shabbat" — just as there's a mitzvah to verbally proclaim Shabbat (Kiddush), so too there's a mitzvah to verbally proclaim the Exodus.

How do we know it's specifically the night of the 15th? "Ve-higadeta le-vincha ba-yom ha-hu" — tell your children on this day. The Gemara explains: "bi-she'ah she-yesh matzah u-maror munachim lefanecha" — when matzah and maror are placed before you. Since the mitzvah of eating matzah and maror is on the night of the 15th, so too the mitzvah of telling the story is on the night of the 15th.

Note on "bincha": When the Torah says "ben" without "bat" next to it, it means all children — sons and daughters. "Ben" only means exclusively male when contrasted with "bat."

Even without children: You still must speak about the Exodus.

Even great scholars: Are obligated. "Ve-chol ha-ma'arich bi-devarim eilu... harei zeh meshubach" — the more you elaborate, the more praiseworthy.

Key Points Derived

The mitzvah lasts the entire night (Rambam's view). Just as all mitzvot of the night can be done until dawn, so too discussing the Exodus is a mitzvah the whole night — until sleep overcomes you ("ad she-techtefenu sheinah"). This is actually the only place in the Shulchan Aruch where staying up all night is mentioned — on Pesach, not Shavuot.

Practical tip: Go to bed with a Pesach book — Meam Loez, Haggadah commentaries — so you fall asleep with Pesach on your mind. There's still a mitzvah even in those final moments.

Note: The Shulchan Aruch rules (following other Rishonim) that we should try to complete the main mitzvot before chatzot (midnight). But the mitzvah of discussing the Exodus continues

all night per the Rambam.

Two lessons from the Shabbat parallel:

1. **Even if alone, you must say it aloud** — just as you say Kiddush even alone on Shabbat, you must verbalize the Haggadah even if alone (relevant during COVID-era sedarim).
2. **Women are equally obligated** — just as women are obligated in Kiddush (because they're obligated in the negative commandments of Shabbat, connecting positive and negative), so too women are obligated in Haggadah (because they're obligated in the negative commandments of Pesach — don't eat chametz, etc.).

Important: It is a mistake for women to spend days preparing and then be too exhausted to participate in the Seder. They have an equal Torah obligation to men.

Halacha 2 — Teaching According to the Child's Level

Rambam: There is a mitzvah to inform your children even if they don't ask. The Torah says "ve-higadeta" (you shall tell) — not "ve-heshivota" (you shall answer). A father teaches according to the child's level of understanding.

For a young or simple child: "My child, we were all once slaves, like this servant, in Egypt. And on this night Hashem redeemed us to freedom." Simple, visual, concrete.

For an older, wiser child: Elaborate on the details — the miracles, Moshe Rabbeinu, the plagues, the specifics.

Rav Kapach's observation: The Rambam characteristically gives visual, tangible examples. Notice he says "like *this* servant" — pointing to a real person. Don't just speak — **act it out, show it, make it real.** Give practical, visual demonstrations so children can live the experience, not just hear about it.

Halacha 3 — Making the Night Different (Arousing Questions)

Rambam: You must do things differently on this night to arouse the children's curiosity, so they ask "Mah Nishtanah?"

Three methods from the Gemara:

Method	What the Rambam Says	Modern Practice
Give treats	Nuts (in those days a big treat)	Sweets, prizes, games — prepare in advance
Remove the table	Each person had an individual table; you'd move it away before eating	We remove the Seder plate (since we share one large table)
"Chotfin" — snatching matzah	Pass the matzah around, snatch it from person to person	Syrian/Iraqi custom: pass matzah on shoulders, ask each other "Where are you coming from? Where are you going?" in Arabic

Note on "Chotfin": Some Rishonim interpret this as going through the Seder quickly so children don't fall asleep. The Rambam does not interpret it this way — he understands it as physically passing/snatching the matzah to create curiosity.

The Afikoman "stealing" game: Based on the Rambam's word "Hotfin" (snatch). The simple reading: snatch it away to preserve it for the end. The game of stealing and ransoming is not the Sephardi minhag and is educationally questionable.

If no children are present:

Situation	Who Asks?
No children	Your spouse asks
No spouse	Colleagues ask each other
Even if all are great scholars	Still ask each other
Completely alone	Ask yourself

Why ask yourself if you know the answer? Asking questions is the greatest demonstration of **intellectual freedom**. In Egypt, Paroh suppressed our ability to think ("Tichbad aleihem ha-avodah"). Asking — even without needing an answer — reenacts our mental liberation.

Halacha 4 — Begin with Shame, End with Praise

Rambam: The telling must begin with the negative (genut) and conclude with the positive (shevach).

Two dimensions:

1. **Spiritual:** Our ancestors were once idol worshippers (Mitechilah) → Hashem brought us to the truth, separated us from the nations, and brought us near to His yichud (oneness/unity).
2. **Physical:** We were slaves to Paroh (Avadim Hayinu) → Hashem performed miracles and liberated us.

The Rambam's order: It appears the Rambam had **Mitechilah first** (spiritual liberation), then **Avadim Hayinu** (physical liberation). Our Haggadot today have the opposite order.

The Yichud Hashem: Notice the Rambam concludes with "ve-kirvanu le-yichudo" — He brought us near to His unity. The oneness of God is central throughout the Rambam's thought (Moreh Nevuchim, laws of converts, etc.). On Pesach night too, we should discuss and reflect on Yichud Hashem.

"Ve-chol ha-mosif u-ma'arich... harei zeh meshubach" — the more you elaborate, the better.

Halacha 5 — The Three Essential Statements

Rambam: Anyone who did not say these three things on the night of the 15th has not fulfilled their obligation:

Item	Reason
Pesach	Because Hashem passed over (pasach) the houses of our ancestors in Egypt
Maror	Because the Egyptians embittered the lives of our ancestors
Matzah	Because we were redeemed — the dough didn't have time to rise

These, together with Avadim Hayinu and Mitechilah, constitute the Haggadah.

These are the absolute essentials that every person — men and women — must say.

Halacha 6 — Experiencing the Exodus Yourself

Rambam: "Be-chol dor va-dor chayav adam **le-harot** et atzmo ke-ilu hu be-atzmo yatza me-shibud Mitzrayim" — every generation, a person must **show** themselves as if they personally left Egypt.

Important textual distinction:

Text	Meaning
Lirot et atzmo (Ashkenazi Haggadah)	To *see/feel* yourself leaving — very demanding
Leharot et atzmo (Rambam / Shulchan Aruch)	To *show/demonstrate* yourself leaving — causative, reenact it

The Rambam's reading is more achievable: you don't necessarily have to *feel* it (though that's ideal), but at minimum you **reenact and demonstrate** it — through leaning, putting matzah on your back, cushions, the whole Seder structure. There is value in the reenactment itself, even if you don't achieve the emotional experience.

Halacha 7 — Leaning and Four Cups

Rambam: Because we reenact leaving Egypt, we must eat and drink while reclining, in the manner of freedom.

Both men and women are obligated to drink four cups.

Women's obligation in four cups: Even though it's a positive time-bound rabbinic mitzvah (from which women are normally exempt), women are obligated because "af hen hayu be-oto ha-nes" — they too were part of the miracle.

Children: The Rambam rules children are **not** obligated in the four cups (unlike the Shulchan Aruch which rules they are). The Gemara debates this; the Rambam follows the opinion that wine isn't appropriate for children's chinuch. **Chacham Ovadia:** If a family can't afford grape juice for children, rely on the Rambam — give children treats instead.

Amount per cup:

Occasion	Minimum Amount
Regular Friday night Kiddush	Melo lugmav (cheekful) ≈ 44 ml
Each of the four cups on Pesach	Revi'it ≈ 86 ml

Even the poorest person must be provided with four cups.

Halacha 8 — Who Must Lean

Rambam: Even the poorest person must lean. It's the manner of freedom.

Women: The Rambam says women don't need to lean (not customary in front of their husbands) — unless she is a "prominent woman" (ishah chashuvah).

Modern ruling: Knesset HaGedolah (R. Benveniste, ~400 years ago) and subsequent Poskim established that **all our women are considered chashuvot**. Therefore Sephardim rule: both men and women lean.

Ashkenazim: Women don't lean (because nowadays nobody truly reclines when eating — following the Ravyah).

Student before teacher: Must ask permission to recline. A child before a father has implied consent.

How to lean: To the left only. Leaning to the right, backward, or forward does not count.

When leaning is essential: Eating the ke-zayit of matzah and drinking the four cups. The rest of the meal: lean as much as comfortable — praiseworthy but not strictly required.

Halacha 9 — The Four Cups: Two Elements

Rambam: There are **two separate components** to the four cups:

1. **Drinking four cups** at the correct points in the Seder
2. **Experiencing freedom** through the drinking

Scenario	Four Cups Fulfilled?	Freedom Fulfilled?
Drank four cups undiluted (too strong to enjoy)	✅ Yes	❌ No
Drank four cups of good wine but all in one go	❌ No	✅ Yes

Practical takeaway: The wine should be enjoyable (if you don't like wine, use grape juice — though the Rambam himself held grape juice is not ideal). And drink each cup at its proper place in the Seder.

Be-di'avad: A cheekful suffices. Le-chatchila: drink a full revi'it.

Halacha 10 — Bracha on Each Cup (Rambam vs. Our Practice)

Rambam: Say Borei Peri HaGafen on **each** of the four cups.

Why? Not because of hesech ha-da'at (interruption). Rather, the Rambam holds each cup is an **independent mitzvah** — the Chachamim established four separate mitzvot. Therefore each one gets its own birkat ha-mitzvah.

Cup	Rambam (& Ashkenazim)	Shulchan Aruch / Sephardim
1st — Kiddush	Borei Peri HaGafen ✅	✅
2nd — Haggadah	Borei Peri HaGafen ✅	❌ (covered by 1st)
3rd — Birkat HaMazon	Borei Peri HaGafen ✅	✅ (new bracha after bentching)
4th — Hallel	Borei Peri HaGafen ✅	❌ (covered by 3rd)

Why Sephardim don't follow the Rambam here: The Rosh (Rabbeinu Asher) was doubtful whether each cup is a separate mitzvah or one combined mitzvah. Safek brachot le-hakel — when in doubt about blessings, we're lenient.

Drinking between cups: Permitted throughout the Seder — except between the 3rd and 4th cup (concern about intoxication preventing completion of Hallel). Tea, water, and other beverages are fine during the Haggadah.

Halacha 11 — Charoset

Rambam: Eating charoset is a mitzvah mi-divrei sofrim (rabbinic), to remember the mortar (tit) in Egypt.

The Rambam's recipe: Dates, figs, or raisins → crush them → add vinegar (chometz) → add spices. In Perush HaMishnayot he adds hyssop. "Like straw in cement."

No bracha on charoset. Why? It's tafel (secondary) — always dipped into with matzah or maror.

Rav Kapach's novel ruling: If stranded on Seder night with only charoset (no matzah, no maror), one should say "asher kideshanu be-mitzvotav al achilat charoset." The bracha is only omitted because it's normally secondary — but if it's all you have, it stands on its own.

Halacha 12 — Maror Is Rabbinic Nowadays

Rambam: Eating maror is **not** a Torah obligation on its own. The Torah links it to the Korban Pesach: "Al matzot u-merorim yochluhu." Without the Korban Pesach, maror is only rabbinic.

Five species qualify as maror: Chazeret (romaine lettuce), endives, horseradish, date ivy, wormwood.

Chazeret (lettuce) is best: The Gemara gives two reasons — (1) it has a touch of sweetness (like Egypt, sweet at first then bitter), (2) the Aramaic "chasa" means compassion.

Ashkenazim use horseradish — lettuce wasn't available in Europe.

Rules: Can eat roots. Cannot cook it (must retain the bitter taste). A combination totaling a ke-zayit works.

Chapter 8 — The Practical Order of the Seder

Halacha 1 — Kiddush

Pour a cup for each person. Say Borei Peri HaGafen, Kiddush, and Shehecheyanu. Drink.

The word "mozgin" (they pour) — some derive from this the custom that others pour for you.

Halacha 2 — Urchatz (With a Bracha!)

Rambam: After Kiddush, say the bracha "Al Netilat Yadayim" and wash hands.

Why with a bracha? Because you're about to dip a vegetable into liquid, and the halacha (Rambam, Rif) requires netilat yadayim with a bracha whenever dipping food into one of the seven liquids.

Why don't we say a bracha today? Tosafot was uncertain whether this applies nowadays. The Shulchan Aruch rules to wash without a bracha (compromise). Ashkenazim stopped washing for dipping entirely during the year — so they explain Urchatz as "to arouse the children's curiosity." But the original reason is clear: it's the halacha of washing before dipping.

Halacha 2 (continued) — Karpas: Major Differences from Today

Rambam says:

- Say Borei Pri Ha-Adamah
- Take any vegetable
- **Dip it in charoset** (not salt water!)
- **Eat a ke-zayit** (not less)
- Everyone eats a ke-zayit

Why charoset and not salt water? Saadia Gaon also said this. The Rambam likely viewed karpas as aristocratic hors d'oeuvres (not just to arouse questions), and charoset fits that role.

Why a ke-zayit? If karpas is substantive (hors d'oeuvres for freedom), you need a proper amount.

The bracha issue: The Rambam held you eat a ke-zayit of karpas, do NOT say Borei Nefashot, and the Borei Pri Ha-Adamah carries through to cover the maror later. Birkat HaMazon at the end covers the ke-zayit of karpas.

Why do we eat less than a ke-zayit today? Later Rishonim (Tosafot) were concerned: if you eat a ke-zayit, you should say Borei Nefashot, which closes the bracha, creating a problem for maror. Solution: eat less than a ke-zayit → no Borei Nefashot needed → Borei Pri Ha-Adamah carries through to maror. That became our practice.

Halacha 2 (continued) — No Yachatz!

The Rambam had no Yachatz. He went straight from karpas to removing the Seder plate and beginning the Haggadah.

The fifteen simanim (Kadesh, Urchatz, Karpas, Yachatz…) are **not** from the Rambam.

Halacha 3 — Maggid and Mah Nishtanah

Remove the Seder plate. Pour the second cup. The child asks. The leader says Mah Nishtanah.

The Rambam's Mah Nishtanah had FIVE parts (not four):

1. On all other nights we dip once, tonight twice
2. On all other nights we eat chametz and matzah, tonight only matzah
3. **On all other nights we eat roasted and boiled, tonight only roasted** (the Korban Pesach)
4. On all other nights we eat other vegetables, tonight bitter herbs
5. On all other nights we eat sitting and reclining, tonight only reclining

Nowadays: We omit #3 since we don't have the Korban Pesach. So we have four parts.

Note: It's one question with multiple parts — not "four questions."

Then say the Haggadah: begin with genut (shame), end with shevach (praise), read Arami Oved Avi, etc.

Halacha 4 — Pesach, Matzah, Maror + Hallel

Return the Seder plate. Say:

- **Pesach:** Lift and explain — Hashem passed over
- **Maror:** Lift and explain — they embittered our lives
- **Matzah:** Lift and explain — we were redeemed

The Rambam's order: Pesach → Maror → Matzah (ending with the positive — freedom). Our Haggadot today: Pesach → Matzah → Maror.

Nowadays: Say "Pesach she-hayu avoteinu ochlin" (which our ancestors ate) — not "Pesach zeh" (this Pesach), since we don't have the Korban.

Conclude with "Lefichach" and Hallel. Say the bracha Asher Ge'alanu. Say Borei Peri HaGafen on the second cup (per Rambam) and drink.

Halacha 5 — Rachtzah

Wash hands a second time **with a bracha** (Al Netilat Yadayim) — because you've had hesech ha-da'at during the long Haggadah reading.

Halacha 5 (continued) — Motzi Matzah: Only TWO Matzot

The Rambam had only two matzot (not three):

1. Take two matzot
2. Break one of them
3. Place the broken pieces inside the complete matzah
4. Say HaMotzi Lechem Min Ha-Aretz
5. Say Al Achilat Matzah

Why only two? "Lechem Oni" — the bread of affliction is broken bread. The Rambam held you don't need lechem mishneh (two complete matzot) on Pesach — because the Torah emphasizes poverty/affliction, not double portions.

Rav Kapach: This applies to ALL seven days of Pesach according to the Rambam — even Shabbat Chol HaMoed. Always one complete and one broken matzah.

Why do we have three matzot today? Other Rishonim disagreed — you still need lechem mishneh (two complete matzot). So: break one earlier (Yachatz), have three total at HaMotzi, drop the bottom one, and say Al Achilat Matzah on the remaining two (one complete, one broken). That's how Yachatz was created.

The Rambam clearly had soft matzah — otherwise the folding/wrapping he describes wouldn't work.

Halacha 5 (continued) — Korech and the Meal

In Temple times: Wrap matzah + maror together, dip in charoset, say brachot on eating matzot u-merorim and on the Korban Pesach and Chagigah.

Nowadays:

1. Say HaMotzi + Al Achilat Matzah → **dip matzah in charoset** and eat
2. Say Al Achilat Maror → dip maror in charoset and eat
3. Wrap matzah + maror together (Korech) → dip in charoset → eat without bracha (zecher la-Mikdash)

Notable: The Rambam says to dip the **matzah** in charoset (not just the maror). This is debated — you need to taste the matzah — but that's what the Rambam writes.

Halacha 6 — Afikoman and Conclusion

Eat the meal. Then eat a ke-zayit of matzah as Afikoman (remembering the Korban Pesach). Don't eat anything afterwards — maintain the taste of matzah.

Wash hands (Mayim Acharonim). Say Birkat HaMazon. Drink the third cup.

Say Hallel on the fourth cup. Say Yehalelucha. Say Borei Peri HaGafen. Drink. Don't drink anything else the rest of the night except water.

Halacha 7 — The Fifth Cup

Rambam: "Ve-yesh lo limzog kos chamishi" — you should pour a fifth cup and say Hallel HaGadol ("Hodu la-Hashem ki tov") on it.

This fifth cup is not obligatory like the four cups, but it is commendable. Some Sephardi communities historically observed this. It is discussed in the Gemara.

What the Rambam Did NOT Have

Element	Status
Yachatz	❌ Did not exist — went straight from karpas to Haggadah
Three matzot	❌ Only two matzot
Fifteen simanim	❌ Not the Rambam's framework
Salt water for karpas	❌ Used charoset
Nirtzah / songs	❌ Not mentioned
Shir HaShirim	❌ Not mentioned (though it is our custom)
Egg on the Seder plate	❌ Two pieces of meat instead

Summary: The Rambam's Seder vs. Our Practice

Element	Rambam	Our Practice Today
Urchatz	With bracha (Al Netilat Yadayim)	Without bracha
Karpas	Dip in charoset, eat a ke-zayit	Dip in salt water, eat less than ke-zayit
Yachatz	Doesn't exist	Break middle of three matzot
Matzot	Two (one complete, one broken)	Three
Mah Nishtanah	Five parts (including roasted meat)	Four parts
Order of Haggadah	Mitechilah first, then Avadim Hayinu	Avadim Hayinu first
Pesach/Maror/Matzah order	Pesach → Maror → Matzah	Pesach → Matzah → Maror
Bracha on each cup	Borei Peri HaGafen on all four	Only on 1st and 3rd (Sephardim)
Seder plate	Two pieces of meat	Meat (zero'a) and egg (beitzah)
Matzah dipped in charoset	Yes	Not standard practice
Children and four cups	Not obligated	Obligated (Shulchan Aruch)
Fifth cup	Recommended (Hallel HaGadol)	Not standard (some Sephardi communities)
Soft matzah	Clearly yes	Varies by community

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